4. Family for this purpose would include the person who seeks benefit of reservation, his/her parents and siblings below the age of 18 years as also his/her spouse and children below the age of 18 years.

3. Equality of Opportunity in Public Employment

Article 16 provides for equality of opportunity for all citizens in matters of employment or appointment to any office under the State. No citizen can be discriminated against or be ineligible for any employment or office under the State on grounds of only religion, race, caste, sex, descent, place of birth or residence.

There are four exceptions to this general rule of equality of opportunity in public employment:

1. Parliament can prescribe residence as a condition for certain employment or appointment in a state or union territory or local authority or other authority. As the Public Employment (Requirement as to Residence) Act of 1957 expired in 1974, there is no such provision for any state except Andhra Pradesh[5] and Telangana[5a].

2. The State can provide for reservation of appointments or posts in favour of any backward class that is not adequately represented in the state services. Also, the State is empowered to provide for reservation in promotions, with consequential seniority, in the services under the State in favour of the Scheduled castes and Scheduled tribes that are not adequately represented in the state services. Further, the State is empowered to consider the unfilled reserved vacancies of a year as a separate class of vacancies to be filled up in any succeeding year or years and such class of vacancies are not to be combined with the vacancies of the year in which they are being filled up to determine the ceiling of 50% reservation on total number of vacancies of that year.

Table 8.4 Provisions of Article 16 (Equality of opportunity in matters of public employment) at a Glance

Article No.	Subject Matter
16(1)	There shall be equality of opportunity for all citizens in matters relating to employment or appointment to any office under the State.
16(2)	No citizen can be ineligible for or discriminated against any employment or office under the State on grounds only of religion, race, caste, sex, descent, place of birth, residence or any of them.
16(3)	Parliament is not prevented from making any law to prescribe residence as a requirement for certain employment or appointment to an office under the Government of a State or Union territory, or any local or other authority within them.